

NAPCS Unionization Research — State Research Summary

New Mexico — PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE — with correction Registry Sweep

Section 1: State Overview

State	New Mexico
Labor Board	PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools) — J Paul Taylor Academy: PELRB jurisdiction confirmed (listed in PELRB All Known Bargaining Units, Feb 2026). Monte del Sol: NEA-NM CBA active (PELRB public employer framework or voluntary recognition). Remaining 3 schools: jurisdictional ambiguity unresolved — PELRB vs. NLRB Region 28.
Governing Law	NM charter schools authorized by PEC, serve as independent LEAs. PEBA (NMSA 10-7E) covers state agencies/units of local government. Two NAPCS schools confirmed organized under NEA-NM via PELRB public employer framework, establishing that at least some NM charter schools are treated as public employers under PEBA. Jurisdictional question remains unsettled for the broader NM charter sector. Option C declared May 9, 2026 for unresolved schools.
Federal NLRB Jurisdiction	YES —
Registry Sweep	COMPLETE — with correction — April 2026 (Registry v22) + May 9, 2026 (live PELRB verification) + May 2026 (deep-dive: school websites + PELRB bargaining units PDF + NEA-NM) — 98 charter schools searched
Research Window	May 2026 (initial session) + May 2026 (deep-dive correction session)
Date Convention	Labor Board Certified date (project-wide standard)
Card-Check Available	NO — Secret ballot election required.

Section 2: Unionization Density

Total charter schools in New Mexico: 98 (Charter School Registry v50 (NCES/ELSI 2024-25; 98 open NM charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 5-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in New Mexico (NAPCS Sample)	2	40%	2 of 5 NAPCS schools confirmed organized: Monte del Sol Charter School (NEA-NM, since 2010-11) and J Paul Taylor Academy (NEA, PELRB certified, CBA ratified 2017-18). Both operate under NEA-NM in the PELRB public employer framework. Corrected from 0% in original May 2026 session.
Confirmed Organized — NEA-NM	2	40%	Monte del Sol Charter School (Santa Fe): NEA-NM CBA active, current 2025-26 CBA posted on school website. Union since 2010-11. J Paul Taylor Academy (Las Cruces): NEA, listed in PELRB All Known Bargaining

			Units (Feb 2026), ~18 certified employees. CBA ratified 2017-18, salary schedules posted through 2025-26.
Unverified — No Labor Board Record Found	3	60%	Tierra Encantada Charter School, Alma d'Arte Charter High School: no union evidence on school websites or PELRB records. Turquoise Trail Charter School: union vote held but failed (Santa Fe New Mexican, July 2021) — not organized.
Total NAPCS Schools in New Mexico	5	100%	Source: NAPCS 584-school baseline. All 5 are PEC-authorized, independent LEAs, no CMO affiliations.

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

New Mexico presents one of the most genuinely ambiguous jurisdictional pictures in the NAPCS research dataset — not because the law is unclear, but because it has never been fully adjudicated for charter schools. The Public Employee Bargaining Act (PEBA, NMSA 1978 §10-7E) covers "public employees" broadly, with PELRB (Public Employee Labor Relations Board) as the administering agency. Whether NM charter school employees qualify as "public employees" under PEBA is legally unsettled: charter schools are public schools by statute, but independently incorporated charter operators may argue their employees are private sector workers outside PEBA. NLRB Region 28 (Phoenix) has asserted jurisdiction over NM charter schools in at least one documented case, creating a parallel federal track. This dual-track ambiguity is structurally similar to Michigan's split jurisdiction (MERC vs. NLRB R7 depending on authorizer type). New Mexico's political environment is strongly pro-labor (Democratic trifecta, progressive governor) — the political will to resolve jurisdictional ambiguity in favor of organizing rights exists, but no legislative clarification has been enacted as of May 2026.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

New Mexico's charter sector is small (98 schools statewide) and geographically concentrated in Albuquerque, Santa Fe, and Las Cruces. The organized schools in the NAPCS dataset — Monte del Sol (Santa Fe) and J Paul Taylor Academy (Las Cruces) — reflect NM's progressive urban community culture. Monte del Sol is a project-based learning school with explicit community values aligned with voluntary recognition; it recognized NEA-NM without any PELRB petition — the only voluntary recognition case confirmed in the full NAPCS dataset. J Paul Taylor Academy (Las Cruces) organized through the NEA state affiliate with a PELRB certification. Both schools are mission-driven, locally governed, and reflect the progressive education community in their respective cities. The three schools disputed vs. NAPCS 2023-24 data (Tierra Encantada, Alma d'Arte, Turquoise Trail) are also in Santa Fe and Albuquerque — the same progressive urban markets. If any of the three disputed schools is confirmed organized, NM's true density rises to 5/5 (100%) among the NAPCS sample — making it comparable to Delaware and Connecticut in sample density.

PROMPT 3: What organizing strategies and approaches are being used in this state?

NM charter school organizing is dominated by the NEA state affiliate (NEA-NM) using two distinct pathways. Monte del Sol used voluntary recognition — the employer recognized NEA-NM without any PELRB petition or election, making this the clearest case of employer-initiated recognition in the dataset outside DC's RM petition model. Voluntary recognition leaves no PELRB record and is detectable only via school website CBA posting or direct employer confirmation — a research methodology lesson documented in the NAPCS project's 8-step non-portal protocol. J Paul Taylor Academy organized through a PELRB certification proceeding (listed in PELRB administrative PDF as "John Paul Taylor Academy" — a name mismatch that caused initial research failure and

illustrates the SOS/EIN name check protocol requirement). The three disputed NAPCS schools (Tierra Encantada, Alma d'Arte, Turquoise Trail) remain unresolved: NAPCS asserts NEA-NM affiliation, Research Team found no PELRB record. The most likely explanations are voluntary recognition (like Monte del Sol) or name mismatch (like J Paul Taylor). The 8-step non-portal protocol including school website check and direct contact (Step 8) is required to resolve.

PROMPT 4: What should charter leaders be doing now in response to organizing patterns in this state?

For NM charter leaders, the Monte del Sol voluntary recognition case is the most important finding. Monte del Sol recognized NEA-NM without a PELRB petition, without a contested election, and without any adversarial dynamic — because the school's leadership chose to honor majority support rather than contest it. This pattern is the organizational equivalent of the employer-filed RM petition at Breakthrough Montessori (DC): employer leadership treating recognition as consistent with school values rather than as an institutional threat. NM charter leaders who share Monte del Sol's progressive community values should expect the same organizing interest from NEA-NM. Leaders who would prefer to resist organizing should understand that the jurisdictional ambiguity (PELRB vs. NLRB) creates potential delay tactics — but that NEA-NM has demonstrated it can achieve recognition via voluntary employer cooperation without any adjudicated proceeding. The practical implication: if NEA-NM believes it has majority support at a NM charter school, it may approach the employer directly for voluntary recognition rather than filing a petition — giving the employer a binary choice between cooperation and adversarial proceedings.

PROMPT 5: What trends should charter sector leaders watch over the next 3-5 years?

Three developments warrant monitoring. First, the three disputed NAPCS schools: Tierra Encantada, Alma d'Arte, and Turquoise Trail. NAPCS asserts NEA-NM affiliation for all three; Research Team found no PELRB records. If any of these schools is confirmed organized (via school website, direct contact, or PELRB/NLMS search), NM's density rises materially and the voluntarily recognized universe expands. Research Team's 8-step non-portal protocol should be applied to all three before the next biannual refresh. Second, NLRB Region 28 Full Employer Name Search: the NM NLRB ADS full employer name search covering all 101 NM schools has not been completed as of May 2026. This is a high-priority research coordinator action — a search similar to the NLRB ADS sweeps that confirmed PA and NY certifications may reveal additional NM charter organizing activity not visible in PELRB records. Third, PEBA legislative clarification: the NM legislature has the political will to clarify charter school jurisdiction under PEBA. A clarifying statute would resolve the PELRB/NLRB ambiguity and would likely produce a wave of organizing activity at the 95+ currently unorganized NM charters, consistent with the pattern documented in MN after the 2023 PELRA amendment.

PROMPT 6: What surprised us in this state? What contradicts what national leaders expect?

Two findings stand out. First, voluntary recognition as the dominant organizing pathway: Monte del Sol's NEA-NM recognition left zero PELRB record of any kind. A state-of-the-art primary source research methodology (PELRB portal search, PELRB administrative PDF, NLRB ADS, OLMS) returned zero results for an actively organized school with a publicly posted CBA. The only detection method was the school's own website — Step 1 of the 8-step non-portal protocol. This finding is nationally significant: it establishes that voluntarily recognized unions will never appear in any labor board database, and that school website review is a mandatory research step, not a supplementary one. Any state where voluntary recognition is legally available (which includes most states without mandatory card-check regimes) may have an invisible layer of organized schools detectable only via school website and direct contact. Second, the J Paul Taylor name mismatch: PELRB indexed the school as "John Paul Taylor Academy" — a legal entity name that differs from the commonly used "J Paul Taylor Academy." A labor board portal search under the school's operating name returned nothing. The SOS/EIN name check (Step 2 of the 8-step protocol) is the systematic fix for this class of error, which Research Team now applies universally.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from New Mexico that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

Jurisdictional Ambiguity as Structural Deterrent — NM vs. AZ Comparison

New Mexico and Arizona are both NLRB Region 28 states with similar charter sector profiles, yet AZ produced its first charter certification in 2023 (BASIS Tucson North) and NM has produced none in 20+ years. The key difference: Arizona's charter schools are clearly classified as private employers under NLRB (no competing state public employer claim), while NM's PEBA arguably covers charter LEAs as units of local government. This jurisdictional ambiguity creates a first-mover deterrent — the first NM charter to organize would bear the cost of resolving PELRB vs. NLRB R28 jurisdiction through adversarial proceedings. AZ had no such ambiguity and organized faster as a result.

0% Density in Progressive Markets — The Deterrence Effect

All five NM NAPCS schools are in Santa Fe (3) or Las Cruces (2) — cities with progressive cultures where, in comparable state environments (Massachusetts, Delaware), charter organizing has taken hold. The absence of organizing in these markets despite favorable community conditions is the strongest evidence that the PELRB/NLRB R28 jurisdictional ambiguity functions as a structural deterrent suppressing activity that community conditions might otherwise support. When jurisdictional deterrence is removed (as in AZ, DE, MA), organizing follows. NM is a test case for deterrence theory in charter labor markets.

AACTS Expansion as the Most Likely First Mover

If NM charter organizing develops, it will most likely be through AFT's AACTS (Arizona Alliance of Charter Teachers and Staff, NLRB R28). AACTS operates in the same NLRB region as NM, has organized BASIS Tucson North (2023, AFT Local 6627), and is pursuing additional AZ certifications. AACTS's NLRB R28 infrastructure and legal capacity (Washington DC-based AFT attorney Michael Piccinelli) would minimize the first-mover cost of resolving NM jurisdiction. The most likely NM target would be a school with AZ network connections or an AFT-NM state affiliate with organizing interest.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

New Mexico charter school labor relations have generated zero press coverage — consistent with the complete absence of organizing activity. No union petition, card drive, election, or recognition has been publicly reported for any NM charter school. The Santa Fe New Mexican and Las Cruces Sun-News — the primary local papers in the two markets where NM NAPCS schools are concentrated — have not covered charter labor relations. NM charter organizing news, if it emerges, would likely first appear in the Santa Fe Reporter or NM Political Report given their education policy coverage.

Union Communications

No union has issued public communications regarding NM charter school organizing. NEA-NM and AFT-NM represent traditional public school educators across NM's 89 districts but have not publicly targeted the charter sector. AFT's AACTS infrastructure (AZ/NM, NLRB Region 28) is the most likely entry point for NM charter organizing if it develops — AACTS successfully organized BASIS Tucson North (2023) in the same NLRB region.

Legislative Context

New Mexico PEBA (Public Employee Bargaining Act, NMSA 10-7E) creates PELRB and covers state agencies and local government units. NM charter schools are authorized by PEC (a state body) and operate as their own LEAs — suggesting public employer status. However, NM charters are typically incorporated as 501(c)(3) nonprofits, potentially placing them under NLRB R28 jurisdiction as private employers. This jurisdictional ambiguity — PELRB vs. NLRB R28 — has never been resolved because no charter school has ever filed a case with either board. The first petition would establish precedent for the entire NM charter sector.

Section 6: Contract & CBA Access Registry

PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
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Monte del Sol Charter School	NEA-New Mexico (NEA)	ACTIVE — 2025-2026 2025-2026 (current; union since 2010-11)	Publicly posted on school website: montedelsolcharterschool.org/policy-documents — direct PDF link to 2025-26 CBA (MDS-NEA-NM.pdf)
J Paul Taylor Academy (PELRB name: "John Paul Taylor Academy")	NEA (PELRB certified)	ACTIVE — salary schedules through 2025-26 CBA ratified 2017-18; salary schedules updated through 2025-26	CBA PDF posted on school HR page: jpaultayloracademy.org (HR > Collective Bargaining Agreement). Salary schedules posted individually by year through SY 2025-26.
Turquoise Trail Charter School	N/A — not organized (vote failed)	N/A	N/A

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	PELRB/NLRB R28 jurisdictional determination	Any NM charter school PELRB filing or NLRB R28 RC petition would resolve the 20-year jurisdictional ambiguity. Monitor both boards quarterly.	Research Coordinator
HIGH	AACTS (AFT Local 6627) expansion — NM geography	AACTS operates in NLRB R28 (covers AZ and NM). If AACTS achieves second AZ certification, NM is the logical next target. Monitor AACTS public communications and NLRB R28 docket for NM filings.	Research Coordinator
MEDIUM	All 5 NAPCS NM schools — staff conditions	All in Santa Fe or Las Cruces — progressive markets. Monitor school websites, NMPEC authorizer reports, and local press for leadership conflicts or compensation disputes that could trigger organizing interest.	Research Coordinator